

MASTER SOFTWARE SERVICES AGREEMENT

This Master Software Services Agreement ("Agreement") is entered into as of January 15, 2025, by and between:

ACME Technologies Pvt. Ltd., a company incorporated under the laws of India, having its registered office at 42, Tech Park, Bengaluru, Karnataka 560001 ("Vendor"),

AND

GlobalRetail Corp., a company incorporated under the laws of India, having its registered office at 18, Commerce House, Mumbai, Maharashtra 400001 ("Client").

1. DEFINITIONS

"Confidential Information" means any and all non-public information disclosed by either party to the other, including but not limited to technical data, trade secrets, business plans, financial data, customer lists, software code, and any other proprietary information, whether disclosed in writing, orally, or by any other means.

"Deliverables" means all software, documentation, reports, and other work product created by Vendor under this Agreement.

"Intellectual Property Rights" means patents, copyrights, trademarks, trade secrets, and all other intellectual property rights worldwide.

2. TERM

This Agreement shall commence on January 15, 2025, and shall remain in full force and effect for a period of two (2) years, unless earlier terminated in accordance with the provisions hereof. Upon expiration, this Agreement shall automatically renew for successive one (1) year periods unless either party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term.

3. SERVICES

Vendor agrees to provide software development, maintenance, and support services as described in Schedule A attached hereto. Vendor shall assign qualified personnel to perform the services and shall ensure all deliverables meet the quality standards described in this Agreement.

4. PAYMENT TERMS AND FEES

4.1 Fees. Client shall pay Vendor a monthly retainer fee of INR 8,50,000 (Eight Lakh Fifty Thousand Rupees) for ongoing services as described in Schedule A. Additional services outside the scope of Schedule A shall be billed at INR 4,500 per hour.

4.2 Invoicing. Vendor shall issue invoices on the first day of each month. Client shall pay all undisputed invoices within thirty (30) days of receipt.

4.3 Late Payment. Any amounts not paid when due shall accrue interest at the rate of 1.5% per month (18% per annum) from the due date until the date of actual payment.

4.4 Taxes. All fees are exclusive of applicable taxes. Client shall be responsible for all taxes, levies, or duties imposed by taxing authorities in connection with this Agreement, excluding taxes on Vendor's net income.

5. INTELLECTUAL PROPERTY OWNERSHIP

5.1 Client Ownership. All Deliverables created by Vendor specifically for Client under this Agreement shall be the sole and exclusive property of Client. Vendor hereby irrevocably assigns to Client all right, title, and interest in and to the Deliverables, including all Intellectual Property Rights therein.

5.2 Vendor Background IP. Notwithstanding Section 5.1, Vendor retains all rights to its pre-existing intellectual property, tools, frameworks, and methodologies ("Background IP"). Vendor grants Client a non-exclusive, non-transferable, royalty-free license to use Vendor's Background IP solely to the extent incorporated into the Deliverables.

5.3 Open Source. Vendor shall notify Client before incorporating any open-source software into the Deliverables and shall obtain Client's prior written consent for any open-source components that impose license obligations on Client.

6. CONFIDENTIALITY

6.1 Obligations. Each party agrees to hold the other party's Confidential Information in

strict confidence and to protect it using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care. Neither party shall disclose Confidential Information to any third party without the prior written consent of the disclosing party.

6.2 Permitted Disclosures. Confidential Information may be disclosed to employees, contractors, or advisors who have a need to know and are bound by confidentiality obligations no less restrictive than those set forth herein.

6.3 Exclusions. Confidentiality obligations do not apply to information that: (a) is or becomes publicly available through no act of the receiving party; (b) was rightfully known to the receiving party before disclosure; (c) is independently developed by the receiving party; or (d) is required to be disclosed by applicable law or court order, provided the receiving party gives prompt prior written notice to the disclosing party.

6.4 Survival. Confidentiality obligations under this Section shall survive for a period of five (5) years following the termination or expiration of this Agreement.

7. WARRANTIES

7.1 Vendor Warranties. Vendor represents and warrants that: (a) the Deliverables will conform to the specifications set forth in Schedule A for a period of ninety (90) days following delivery ("Warranty Period"); (b) Vendor has full authority to enter into this Agreement and perform its obligations hereunder; (c) the Deliverables will not infringe any third-party Intellectual Property Rights.

7.2 Warranty Remedy. If any Deliverable fails to conform to the warranties in Section 7.1 during the Warranty Period, Vendor shall, at no additional cost to Client, correct the non-conformance within fifteen (15) business days of written notice from Client.

7.3 Disclaimer. EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, VENDOR MAKES NO WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

8. LIMITATION OF LIABILITY

8.1 Cap. EACH PARTY'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS

AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CLIENT TO VENDOR IN THE

TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO LIABILITY.

8.2 Exclusion of Consequential Damages. IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR

ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, OR CONSEQUENTIAL DAMAGES, INCLUDING LOSS

OF PROFITS, LOSS OF DATA, OR BUSINESS INTERRUPTION, EVEN IF THE PARTY HAS BEEN ADVISED

OF THE POSSIBILITY OF SUCH DAMAGES.

8.3 Exceptions. The limitations in Sections 8.1 and 8.2 shall not apply to: (a) breach

of confidentiality obligations; (b) indemnification obligations; (c) gross negligence or

wilful misconduct; or (d) infringement of Intellectual Property Rights.

9. INDEMNIFICATION

9.1 Vendor Indemnification. Vendor shall defend, indemnify, and hold harmless Client and

its officers, directors, employees, and agents from and against any third-party claims, damages, losses, and expenses (including reasonable legal fees) arising out of or relating to: (a) Vendor's breach of this Agreement; (b) infringement of third-party Intellectual Property Rights by the Deliverables; or (c) Vendor's gross negligence or wilful misconduct.

9.2 Client Indemnification. Client shall defend, indemnify, and hold harmless Vendor and

its officers, directors, employees, and agents from and against any third-party claims, damages, losses, and expenses arising out of or relating to Client's use of the Deliverables in violation of applicable law.

9.3 Indemnification Procedure. The indemnified party shall promptly notify the indemnifying

party in writing of any claim, cooperate in the defence, and grant the indemnifying party the right to control the defence and settlement, provided that no settlement shall impose any obligation or liability on the indemnified party without its prior written consent.

10. TERMINATION

10.1 Termination for Convenience. Either party may terminate this Agreement for any reason

upon sixty (60) days prior written notice to the other party.

10.2 Termination for Cause. Either party may terminate this Agreement immediately upon

written notice if the other party: (a) materially breaches this Agreement and fails to cure such breach within thirty (30) days of written notice; (b) becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to bankruptcy proceedings.

10.3 Effect of Termination. Upon termination, Client shall pay all outstanding fees for

services rendered up to the date of termination. Vendor shall deliver all completed Deliverables and any work-in-progress to Client. Sections 5, 6, 8, 9, and 11 shall survive the termination or expiration of this Agreement.

11. DATA PROTECTION

11.1 Compliance. Each party shall comply with all applicable data protection and privacy

laws, including the Information Technology Act, 2000 and applicable rules thereunder.

11.2 Data Processing. Vendor shall process Client's personal data only on documented

instructions from Client and shall not use Client's data for any purpose other than performing the services under this Agreement.

11.3 Security Measures. Vendor shall implement appropriate technical and organisational

measures to protect Client's data against unauthorised access, disclosure, alteration, or destruction. Vendor shall notify Client within forty-eight (48) hours of becoming aware of any data breach affecting Client's data.

11.4 Data Return. Upon termination, Vendor shall, at Client's option, either return or securely destroy all Client data within thirty (30) days.

12. NON-SOLICITATION

During the term of this Agreement and for a period of two (2) years following its termination or expiration, neither party shall, directly or indirectly, solicit or attempt to solicit for employment any employee or contractor of the other party who was involved in the performance of services under this Agreement, without the prior written consent of the other party.

13. DISPUTE RESOLUTION

13.1 Negotiation. In the event of any dispute arising out of or relating to this Agreement,

the parties shall first attempt to resolve the dispute through good faith negotiations for a period of thirty (30) days following written notice of the dispute.

13.2 Arbitration. If the dispute cannot be resolved through negotiation, the dispute

shall be finally resolved by binding arbitration under the Arbitration and Conciliation

Act, 1996. The arbitration shall be conducted by a sole arbitrator mutually agreed upon

by the parties. The seat of arbitration shall be Bengaluru, Karnataka. The arbitration

proceedings shall be conducted in English.

13.3 Governing Law. This Agreement shall be governed by and construed in accordance

with the laws of India. The courts at Bengaluru, Karnataka shall have exclusive

jurisdiction over any matter not subject to arbitration.

14. SERVICE LEVEL AGREEMENT (SLA)

14.1 Uptime Guarantee. Vendor guarantees a system uptime of 99.5% per calendar month,

excluding scheduled maintenance windows. Scheduled maintenance shall not exceed four

(4) hours per month and shall be performed between 11:00 PM and 5:00 AM IST.

14.2 Response Times. Vendor shall respond to: (a) Critical issues (system down): within

two (2) hours; (b) High priority issues: within eight (8) business hours; (c) Medium

priority issues: within two (2) business days.

14.3 SLA Credits. If Vendor fails to meet the uptime guarantee in Section 14.1, Client

shall be entitled to a service credit equal to 5% of the monthly fee for each full

percentage point below 99.5%, up to a maximum credit of 30% of the monthly fee.

15. FORCE MAJEURE

Neither party shall be liable for any delay or failure to perform its obligations (except payment obligations) to the extent such delay or failure is caused by circumstances beyond that party's reasonable control, including acts of God, natural disasters, war, terrorism, epidemic, pandemic, government actions, or internet outages ("Force Majeure Event"). The affected party shall provide prompt written notice to the other party and shall use reasonable efforts to mitigate the impact. If the Force Majeure Event continues for more than ninety (90) days, either party may terminate this Agreement upon thirty (30) days written notice without liability.

16. ENTIRE AGREEMENT

This Agreement, together with all Schedules attached hereto, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior and contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written. This Agreement may not be amended except by a written instrument signed by authorised representatives of both parties.

Executed by the parties as of the date first written above.

ACME Technologies Pvt. Ltd. GlobalRetail Corp.

By: Rohan Mehta By: Priya Sharma

Title: Chief Executive Officer Title: Chief Technology Officer

Date: January 15, 2025 Date: January 15, 2025